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General Comment

See attached file(s)

Attachments

FINAL AI Action Plan Comments to Trump Administration

AI ACTION PLAN COMMENTS

Regarding the Executive Order 14179 Issued On January 23, 2025 by President Donald J. Trump titled: “Removing Barriers to American Leadership in Artificial Intelligence”¹

Submitted Pursuant to Federal Register Notice 90 FR 9088² (Request for Information) by: The Songwriters Guild of America, the Society of Composers & Lyricists, and the United States’ affiliate members of Music Creators North America (as listed at the conclusion of these Comments)

AGENCY: Networking and Information Technology Research and Development (NITRD), National Coordination Office (NCO), National Science Foundation (NSF)

Date of Submission: March 14, 2025

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I. Introduction

The following Comments are respectfully submitted by the signatory organizations Songwriters Guild of America,³ the Society of Composers & Lyricists,⁴ and the United States affiliate members of Music Creators North America (MCNA) (listed at the conclusion of these Comments). Together, these groups represent and advocate on behalf of hundreds of thousands of independent songwriters, composers and lyricists located within the United States and elsewhere.⁵

At the outset, we wish to thank the Trump Administration for the opportunity to present these Comments. The advancement of artificial intelligence is an issue already having a profound bearing not only on the American and global economies, but as pertains to music, also on our Nation’s crucial ability to influence political, cultural and economic issues around the world to the great benefit of US national security.

We enthusiastically agree that that our Nation needs to “define priority policy actions to enhance America’s position as an AI powerhouse and prevent unnecessarily burdensome requirements from

¹ <https://www.whitehouse.gov/presidential-actions/2025/01/removing-barriers-to-american-leadership-in-artificial-intelligence/>

² <https://www.nitrd.gov/request-for-information-on-the-development-of-an-artificial-intelligence-ai-action-plan/>

³ <https://www.songwritersguild.com/site/index.php>

⁴ <https://thescl.com/>

⁵ A full Statement of Interest regarding each of these parties is included in Section IV of these Comments.

hindering private sector innovation.” We are likewise committed, however, to demonstrating that this goal can and must be achieved without harm or hindrance to the most robust economic and culturally influential music sector in world history --one which the United States of America created from the ground up that has continued to flourish for well over a century and counting.

The enormous importance of safeguarding American artistic creativity and its resulting intellectual property output (including musical compositions and recordings) in the age of *generative* artificial intelligence (GenAI) cannot be overstated, even as the US simultaneously constructs a program to engender world leadership in the AI technology sphere. In that regard, our message is a simple one: In order for our country to thrive in a radically new, hybrid landscape combining human creativity and AI technology, we must seek not only to encourage technological innovation, but also support the continuation of America’s nearly complete dominance in the creation and export of the music that the world loves like no other.

We are absolutely convinced that it is within our capacity as Americans to thrive in this dual role –provided we have the will and commitment to do so.

To begin, we wish to underline some important points concerning this two-track strategy for the purposes of making our positions explicitly clear:

First, our organizations fully embrace the use of AI technology when used in the hands of human creators as *tools* to further the advancement of musical culture. We applaud the adoption and careful, human-curated use of AI innovations by songwriters, composers and recording artists to advance the art and craft of music creation and production, and welcome new AI advances that will give human creators increasingly greater ability to express their talents and genius.

To further clarify, however, we also hold the fully consistent position that certain *unlicensed* GenAI uses of music as described in these comments must be promptly identified, addressed and corrected under law. We have developed several specific suggestions as to how address such concerns, and to avoid the inevitable damage that will flow from wholly unregulated GenAI activities. We are pleased to outline these ideas below.

Second, as previously stated, we ask that the Administration take careful note with pride of an important consideration so deeply rooted in American cultural and economic history that its extraordinary nature is often overlooked. That is, music creation is one of those elements that literally defines American exceptionalism. Solely in terms of hard numbers, the US music industry contributes well over an enormous \$200 billion annually to the US Gross National Product (GDP), supporting some 2.5 million jobs and over 250,000 music venues and establishments.⁶ But even those eye-opening statistics tell only part of the story of the economic and cultural engine that is American music.

For well over an entire century, American music has utterly *dominated* the world music market, influencing the people of other nations around the world to admire and often adopt a pro-American style and world-view, both musically and culturally. The historically unique, melting-pot phenomenon of American music acting as one of our country’s most effective ambassadors

⁶ <https://www.musgetf.com/posts/music-is-outperforming-the-us-economy>

of good will and economic advantage has inarguably led to gigantic enhancements in the US balance of trade, and paid even greater dividends by spreading American culture and commerce across the world to the benefit of hundreds of other US business sectors. Such overwhelming and longstanding, positive effects cannot be forgotten, and surely must not be permitted to be undermined by complete, de facto deregulation that enables or even encourages grossly unfair, *unlicensed* GenAI uses of our music without proper consent, credit and compensation.

From the times that the musical giants of New Orleans spread ragtime across America in the late 19th century, to the day that renown American orchestra leader Lt. James Reese Europe stepped off a US troop ship in World War I France with his 369th Harlem Hellcats band and introduced the new jazz idiom to Europe, right up to last year's published studies showing that in 2024 nine out of ten of the world's most popular musical recordings were *still* American in origin,⁷ US music has uninterruptedly been synonymous with cultural and financial excellence.

Even at the height of music's famous "British Invasion" of the mid-1960s led by the Beatles and Rolling Stones, the members of both English bands and most of their global contemporaries readily admitted that their artistic inspirations were near-totally US in origin. Another half century or more later, conversations of musical composition and performance virtuosity *still* begin and often end with nods to the heroes of American blues, gospel, swing, rock and roll, soul, pop, country, western, Broadway, Hollywood, hip-hop and even the classical works of Gershwin, Copland, Bernstein, Ellington, and other American musical idols.

This level of unprecedented, long-term popularity in the global music marketplace is a point of enormous satisfaction and inspiration to our organizations, and stands as a towering tribute to our country's cultural contributions to the world as a whole. In sum, it is axiomatic that the uniqueness of the American musical melting pot in creating perhaps the greatest golden age of music since the epoch of Mozart and Beethoven must not be permitted to be eclipsed by GenAI technology. Rather, we must forge ways for new technologies—including GenAI-- to advance symbiotically with human-created musical arts in America as a hallmark of this new era, so that *all* of the benefits of American ingenuity in art, science, and commerce can simultaneously continue to flourish around the globe.

II. Discussion

For purposes of developing these Comments, the submitting organizations have adopted the following definition of "GenAI" as recently published by the Congressionally-chartered National Music Council of the United States:

GenAI systems [are defined] as machine-based content generators that are artificially "trained" on a set of ingested, often copyright-protected data to find patterns within that data, and thereafter to generate additional content based upon such data (including text,

⁷ <https://themusicnetwork.com/america-dominates-ifpi-best-selling-singles-chart-2024/>

image, video, audio, multimedia, or other forms of output) pursuant to a given set of human-defined or machine-derived objectives or “prompts.”

Obviously, such GenAI systems pose an existential danger to the sustainability of human-centric creation on both a cultural and financial basis if left wholly unregulated. Legal issues including matters of consent, credit, and compensation are just a few of the aspects of GenAI ingestion, manipulation and output that need to be expeditiously clarified and resolved before GenAI systems become even more ubiquitous, and a threat to the viability of music as an important cultural artform, as a major contributor to the US economy and balance of trade, and as the basis for sustaining the ability of all persons in music community value chain to earn a living.⁸

The existential nature of the threat posed by GenAI to the livelihoods of songwriters, composers and musical artists as referenced above is as easily demonstrable as it is obvious. According to a recent study conducted by the *PMP Strategy* company on behalf of the global copyright group CISAC, GenAI-derived music will by 2028 likely have displaced and/or usurped \$16 billion in royalty revenues that otherwise would have accrued to human music creators and their assignees.⁹ The foreign music creator organizations SACEM (France) and GEMA (Germany) reached nearly identical conclusions in their recent joint study, which prognosticates that generative AI could cut into 30% of digital revenue, 22% of TV and radio revenue and 22% of compositions played in public by the end of the decade or sooner unless new licensing and royalty regimes are put in place.¹⁰ These figures are further supported by the Fair Trade Music International White Paper Report (sponsored in part by MCNA) and published in September, 2024.¹¹

According to CISAC president Björn Ulvaeus, one of the world’s most successful songwriters and recording artists and a former member of the superstar band ABBA (as quoted by journalist Robert Levine), “there’s no way we can or should stand against AI — it can be a wonderful tool.” “But,” Ulvaeus adds in harmony with the views of the independent music creator community, “creators should be at the negotiating table.... The success of AI isn’t based on public content — it’s based on copyrighted works. We need to negotiate a fair deal.... That’s only possible if generative AI companies are required to license the rights to ingest works, which by definition involves copying them.”¹²

III. The Framework for a Legislative Solution

With all of these statistics and opinions in mind, our organizations have spent considerable time developing what we believe is a blueprint for developing a legal framework that will provide full protections to music creators (thus helping to preserve America’s extraordinary cultural

⁸ <https://www.musiccouncil.org/>

⁹ <https://www.billboard.com/pro/will-generative-ai-become-creator-terminator/>

¹⁰ <https://www.billboard.com/pro/will-generative-ai-become-creator-terminator/>

¹¹ <https://www.fairtrademusicinternational.org/ftmi-releases-legal-analysis-white-paper-proposing-a-new-right-for-generative-ai/>

¹² See, <https://www.billboard.com/pro/will-generative-ai-become-creator-terminator/>

leadership throughout the world) while enabling technologists to gain access to the musical works they desire to utilize at fair market value (thus propelling American technology forward at a pace to lead the global AI sector).

Our proposal includes: (a) the establishment of *sui generis* rights for music creators to control the use of their works in GenAI contexts; (b) a clarification that there exists a heavy presumption against fair use findings in cases of unauthorized uses of copyrighted musical works by GenAI systems; (c) provisions for the payment of individual royalties on both the ingestion of copyrighted works by GenAI systems and on the gross revenues flowing from the output of such systems; and (d) a collective licensing framework that allows for collective bargaining in the royalty rate setting process. We are also willing to listen to proposals concerning establishment of a GenAI blanket licensing system, but only one that is subject to creator and copyright administrator opt-outs and operated by collectives overseen by an elected board of directors comprised of no less than two-thirds of music creators.

For discussion purposes only, we therefore set forth the following, point by point outline in preparation for far more detailed discussions in the immediate future concerning the forging of a legislative/administrative solution to serve the best interests of America's creators, technologists, and consumers. Our initial principles are as follows:

1. It is generally recognized as self-evident that GenAI has both the capacity to enhance human musical expression and public enjoyment of the musical arts, or if not properly regulated by law, to cause longstanding, crushing and potentially existential damage to the unique, global phenomena of American musical commerce and culture.
2. It is axiomatic that there is a fundamental difference between artificial intelligence ("AI") tools and technologies used by humans to assist in advancing human musical creativity, and GenAI Systems designed to operate without meaningful human curation in using existing copyrighted works as the basis for outputting unauthorized derivatives.
3. In order to preserve American musical commerce and culture (which for over a century has produced by far the world's leading repertoire of musical works), human creators of such works must be guaranteed by law the unambiguous, exclusive, *sui generis* rights (a) to control the use of their works in all GenAI contexts related to ingestion, manipulation and output, and (b) to be fairly compensated and credited for all such uses.
4. Such *sui generis* rights should include the authority to collectively negotiate licenses for the use and payment of royalties for all copyrighted musical works ingested into so-called GenAI "training" systems, the payment of royalties on all output generated by such systems, and the continuation of liability for copyright infringement and violation of other anti-plagiarism statutes if the scope of licensed rights is exceeded.
5. Such *sui generis* rights shall be deemed to have vested at the time of creation of a musical work solely in the work's human creators, including human creators of works made for hire, and such rights may only be conveyed in a written instrument executed by such human author or his/her heirs after the effective date of the establishing legislation. Such

conveyance of rights shall thereafter be subject to termination pursuant to the terms set forth in section 203 of the US Copyright Act and other sections as may be appropriate.

6. There should be legislative clarification that unlicensed ingestion, manipulation and output of copyrighted works by GenAI systems presumptively fall(s) outside the boundaries of the US fair use doctrine. It should further be made clear that the creative and remunerative rights of human creators established by law (including those pursuant to Article I Section 8 of the US Constitution) are to be favored over the economic and other desires of those seeking to supplant human creators and their works by technological means whether or not for personal gain or profit.
7. It must be a requirement of every GenAI licensing system that any party owning, designing or making use of such systems be mandated by law to keep, maintain and retain complete and accurate records of every copyrighted musical work utilized in the training and/or ingestion process dating back to day one of system initiation, and full and complete details of all subsequent output uses.
8. In order to qualify as copyrightable, a musical work should have been created by a human author(s) whose level of curation over the creative process, among other criteria, rises far above the level of mere prompts requesting incorporation of artificially produced stylistic influences (whether lyrical, musical or performative).
9. Strict guidelines concerning the mandatory use and preservation of metadata should be included in governing legislation.
10. It is a commercial and cultural imperative that legislative action in regard to the governance of GenAI systems should be prompt, in recognition of the speed at which technological advances are proceeding in the GenAI sector.

IV. Statements of Interest

SGA is the longest established and largest music creator advocacy and copyright administrative organization in the United States run solely by and for songwriters, composers, and their heirs. Its positions are reasoned and formulated independently and solely in the interests of music creators, without financial influence or other undue interference from parties whose interests vary from or conflict with those of songwriters, composers, and other authors of creative works. Established in 1931, SGA has for over 94 years successfully operated with a two-word mission statement: “Protect Songwriters,” and continues to do so throughout the United States and the world. SGA’s organizational membership stands at approximately 6500 members

SCL is the premier US organization for music creators working in all forms of visual media (including film, television, video games, and musical theatre). It has a membership of over 4000 professional composers and lyricists, and is a founding co-member --along with SGA and other independent music creator groups-- of MCNA.

MCNA is an alliance of independent songwriter and composer organizations that advocates and educates on behalf of North America's music creator community. As the only internationally recognized voice of North American songwriters and composers, MCNA, through its global affiliations, is part of a coalition that represents the professional interests and aspirations of more than half a million creators across Africa, Asia, Australasia-Oceania, North and South America, and Europe.

V. Conclusion

We once again thank the Trump Administration for consideration of these Comments, and for its recognition of the crucial importance of attaining the mutually beneficial goals of maintaining the global leadership positions of both the US music creator community and the American technology community as to the advance of Artificial Intelligence. We stand ready to assist and participate in all future discussion and initiatives on the issues addressed.

Respectfully submitted,

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cc: Charles J. Sanders, Esq.
Ms. Shira Perlmutter, US Register of Copyrights
Mr. Eddie Schwartz, President, Music Creators North America
Members of the US Senate and House Sub-Committees on Intellectual Property

List of Other Affiliated Organizations

Alliance for Women Film Composers (AWFC). <https://theawfc.com>
Game Audio Network Guild (G.A.N.G.) <https://www.audiogang.org/>
Music Answers (M.A.), <https://www.musicanswers.org>
Fair Trade Music International (FTMI), <https://www.fairtrademusicinternational.org/>
(non-MCNA member)
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